

24PSCV04481 24PSCV04481

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Case Number: 24PSCV04481 Hearing Date: August 25, 2026 Dept: 6

CASE NAME:

Interinsurance Exchange of the Automobile Club v. Vicente Reyes

Vargas

Plaintiff Interinsurance Exchange of the

Automobile Club's Motion to Enforce Settlement Agreement and Enter Judgment

Against Defendant Vicente Reyes Vargas

TENTATIVE

RULING

The Court GRANTS Plaintiff Interinsurance Exchange of the

Automobile Club's Motion to Enforce Settlement Agreement and Enter Judgment

Against Defendant Vicente Reyes Vargas. The Court directs Plaintiff to submit the proposed Judgment as a separate document, prior to the hearing, for the Court to sign.

Plaintiff

is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a subrogation action. On December

30, 2024, plaintiff Interinsurance Exchange of the Automobile Club (Plaintiff)

filed this action against defendant Vicente Reyes Vargas (Defendant) and Does 1 through 10, alleging one cause of action for subrogation.

On February 6, 2026, Plaintiff dismissed this action without prejudice and with the Court retaining jurisdiction under Code of Civil Procedure section 664.6.

On July 21, 2026, Plaintiff moved to enforce settlement agreement and enter judgment against Defendant. Defendant did not oppose the Motion.

LEGAL STANDARD

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a).)

“A party may file a motion or other document pertaining to the settlement, including an application for determination of good faith settlement, a motion for the reduction or determination of a lien, a petition related to the compromise of the claim of a minor or person with a disability, or, if the terms of a settlement are not performed, a motion based upon such terms. Responsive filings and related documents may also be filed.” (Code Civ. Proc., § 664.6, subd. (f)(1).)

PRELIMINARY ISSUES

The Court notes that Plaintiff’s Motion quotes an outdated version of Code of Civil Procedure section 664.6. (Motion, 4:21-25.) The Court admonishes Plaintiff to properly quote the law going forward.

DISCUSSION

Plaintiff moves under Code of Civil Procedure

sections 187 and 664.6 to enforce the parties' December 23, 2025 Stipulation for Entry of Judgment and Installment Payments (the Stipulation) and to enter judgment against Defendant. Plaintiff states that the Stipulation stayed judgment while Defendant paid \$3,860.74 through his insurance carrier plus monthly installments of \$75.00 totaling \$11,360.74, and that paragraph 9 of the Stipulation reserves the Court's jurisdiction to enforce judgment under section 664.6. Plaintiff contends Defendant has defaulted, asserting that the carrier paid the initial \$3,860.74 but Defendant thereafter paid only \$225.00, with no payment received after March 14, 2026. Relying on paragraphs 1 and 5 through 8 of the Stipulation, under which Defendant acknowledged that the underlying amount is the actual amount due and owing and not a penalty, and agreed that a declaration of default is conclusive proof of the default and amount owed, Plaintiff requests entry of judgment for the principal sum of \$47,017.17, plus \$3,619.68 in interest at 5% per annum from December 30, 2024, through July 15, 2026, less a \$4,085.74 credit for payments received, plus \$534.00 in costs, for a total of \$47,085.11, with interest accruing at \$6.44 per day.

The Court finds Plaintiff's Motion

persuasive. The Court retained jurisdiction to enforce the Stipulation under Code of Civil Procedure section 664.6 and paragraph 9 of the Stipulation expressly provides for the Court's continuing jurisdiction under section 664.6. (Request for Dismissal (2/6/26); Tapper Decl., Ex. A, ¶ 9.) The Stipulation provides that Defendant was to make monthly installment payments totaling \$11,360.74 as a negotiated settlement amount and that Plaintiff could obtain entry of judgment against Defendant in the amount of \$47,017.17 plus interest from December 30, 2024, and court costs, less credit for all payments made before default, if Defendant failed to make the agreed upon installment payments. (Tapper Decl., Ex. A, ¶¶ 1-5; Creditors Adjustment Bureau, Inc. v. Imani (2022) 82 Cal.App.5th 131, 135 [stipulation for entry of judgment on full amount not a penalty where defendant acknowledged the full amount due].) Plaintiff's evidence shows that Defendant stopped making payments after March 14, 2026. (Tapper Decl., ¶ 4.) Plaintiff is therefore entitled to entry of judgment under Code of Civil Procedure section 664.6. The Court further finds Plaintiff's prejudgment interest calculation correct. Plaintiff did not itemize its court costs, but the Court assumes these are correct given Defendant's lack of opposition. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

Based on the foregoing, the Court GRANTS the Motion. The Court will sign the separately lodged proposed judgment.

CONCLUSION

The Court GRANTS Plaintiff Interinsurance Exchange of the Automobile Club's Motion to Enforce Settlement Agreement and Enter Judgment Against Defendant Vicente Reyes Vargas. The Court directs Plaintiff to submit the proposed Judgment as a separate document, prior to the hearing, for the Court to sign.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.